

HSU v DEL MUNDO

24CV47462

DEFENDANT'S SECOND DEMURRER TO PLAINTIFF'S AMENDED COMPLAINT

Plaintiff Mike Sheng Con Hsu. ("Plaintiff") filed his Complaint arising out of a real property dispute with Defendants Leonardo Del Mundo and Angela Del Mundo ("Defendants"). Now before the Court is Defendants' demurrer to the Plaintiff's First Amended Complaint.

The demurrer does not comply with Local Rule 3.3.7. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

3.3.7 Tentative Rulings (Repealed Eff 7/1/06, As amended 1/1/18) All parties appearing on the Law and Motion calendar shall utilize the tentative ruling system. Tentative Rulings are available by 2:00 p.m. on the court day preceding the scheduled hearing and can be accessed either through the court's website or by telephoning 209-754-6285. The tentative ruling shall become the ruling of the court, unless a party desiring to be heard so advises the Court no later than 4:00 p.m. on the court day preceding the hearing including advising that all other sides have been notified of the intention to appear by calling 209-754-6285. Where appearance has been requested or invited by the Court, all argument and evidence is limited pursuant to Local Rule 3.3. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

Pursuant to Local Rule 3.3.7, the Court will make a tentative ruling on the merits of this matter by 2:00 p.m. the court day before the hearing. The complete text of the tentative ruling may be accessed on the Court's website or by calling 209-754-6285 and listening to the recorded tentative ruling. If you do not call all other parties and the Court by 4:00 p.m. the court day preceding the hearing, no hearing will be held and the tentative ruling shall become the ruling of the court [emphasis in original.]

Failure to include this language in the notice may be a basis for the Court to deny the motion.

The Demurrer is **OVERRULED**, without prejudice to refile. However, the Court notes defendant has previously been admonished for failing to include the mandatory notice language in previous motions. Defendant is advised that any future such failures will result in denials with prejudice.

The clerk shall provide notice of this ruling to the parties forthwith. No further formal Order is required.

**WALKER, et al v JODY A TAYLOR and SHARON L CLARK, TRUSTEES OF THE
DOUBLE SPRINGS RANCH TRUST, et al**

24CV47475

DEFENDANT’S MOTION FOR PRELIMINARY INJUNCTION

This civil action stems from dispute concerning an easement and questions over title to a certain stretch of property. Randy Walker (“Walker”) and Jessica Albonico (“Albonico”) (collectively, “Plaintiffs”) filed this action to determine the parties’ respective rights and duties, as well as to quiet title. Defendants are Jody A. Taylor (“Taylor”) and Sharon L. Clark (“Clark”) Trustees of the Double Springs Ranch Trust; Carol A. Gates, Trustee of the Carol A. Gates Family Trust (“Gates”); Perry Williard; Cheryl Willard Alden R. Houbein and Virginia A Houbein, Trustees of the Houbein Revocable Trust DTD March 21, 1996; John M. Taylor, Katherine L. Taylor, and Mark Van Lobel Sels and Mary Van Lobel Sels (collectively “Van Loben Sels”).

On April 29, 2025, Taylor and Clark as Trustees, Gate as Trustee, and the Van Lobel Sels filed a Cross-Complaint against Plaintiffs for declaratory relief, quiet title, trespass, permanent injunction, and abuse of process. For ease of reference, the Court refers to the cross-claiming defendants collectively as “Cross-Complainants.”

On June 18, 2025, the Court entered a temporary restraining order against Plaintiffs and an Order to Show Cause (“OSC”) requiring Plaintiffs to show cause as to “why a preliminary injunction should not be ordered restraining and enjoining Plaintiffs from entering, traversing, or performing any acts of use upon the Cross-Complainants’ real property.”

Now before the Court is Cross-Complainants’ motion for preliminary injunction and the order to show cause as to why Plaintiffs should not be subject to an injunction. The motion is opposed.

I. Background Facts and Relevant Procedural History

Taylor, Clark and Gates are joint legal owners of the following parcels: Calaveras County APN 040002009, 046017017, 046020001, 046020008, 046017052, and 046017018. The Van Lobel Sels are owners of several parcels, in particular to this dispute those known as Calaveras County APN 046017053 and APN 046026019 which prior to 2018 were owned by the City of Stockton for decades. For ease of reference,